

Unit –V

09 Hrs

Trade Secrets: Definition, Significance, Tools to protect Trade secrets in India.

Industrial Design: Introduction of Industrial Designs Features of Industrial, Design. Procedure for obtaining Design Protection, Revocation, Infringement and Remedies, Case studies.

Copy Right: Introduction, Nature and scope, Rights conferred by copy right, Copy right protection, transfer of copy rights, right of broad casting organizations and performer's rights, Exceptions of Copy Right. Infringement of Copy Right with case studies.

Trade Secrets



- Trade secrets are confidential pieces of information—such as customer lists, formulas, or business strategies—that provide a competitive edge to a business and have been subject to reasonable steps to maintain their secrecy.
- Unlike patents, trade secrets do not require registration and can offer protection indefinitely as long as they remain secret.
- However, they do not prevent others from independently discovering the secret, and their value depends on maintaining confidentiality through measures like confidentiality agreements and access controls.
- A **trade secret** is information that a business keeps confidential to maintain a competitive advantage. Well-known examples include the [Coca-Cola formula](#) and the recipe for [Kentucky Fried Chicken](#).

Key Characteristics

- **Confidentiality:** The information must not be publicly known or easily accessible to others in the relevant field. ■
- **Commercial Value:** The information must provide a competitive advantage because it is kept secret. ■
- **Reasonable Measures:** The holder of the trade secret must take reasonable steps to keep the information secret, such as using confidentiality agreements (NDAs). ■

Examples of Trade Secrets

- **Technical Information:** Formulas, patterns, devices, processes, and manufacturing techniques. ■
- **Business Information:** Marketing and sales strategies, customer and supplier lists, financial arrangements, pricing strategies, and business management routines. ■
- **Examples:** The formula for Coca-Cola and the specific ingredients of Chartreuse liqueur are famous examples of trade secrets. ■

Legal Protection

- **No Registration Required:** Unlike other intellectual property rights, trade secrets do not need to be registered. ■
- **Protection Period:** Trade secrets can last indefinitely, as long as they are kept secret. ■
- **Enforcement:** Owners can take legal action (e.g., seek compensation and injunctions) against those who unlawfully acquire or misuse the trade secret through methods like theft or breach of confidence. ■
- **Independent Discovery:** Trade secret laws do not prevent competitors from independently discovering the same information. ■

How to Protect Trade Secrets

- **Documentation:** Maintain clear records of the information and the steps taken to keep it secret. ■
- **Confidentiality Agreements (NDAs):** Require employees, contractors, and business partners to sign NDAs to prevent them from disclosing confidential information. ■
- **Security Measures:** Implement security measures to control access to trade secret information. ■
- **Limited Disclosure:** Restrict access to the secret information to a small number of trusted individuals. ■

Significance of Trade Secrets

- Trade secrets are important because they protect crucial, economically valuable information that gives a company a competitive advantage, such as secret formulas or manufacturing processes.
- This protection can be long-lasting, potentially indefinite, and is achieved through keeping information confidential rather than formal registration, offering a cost-effective alternative to patents for certain innovations.
- By safeguarding these secrets, businesses can encourage innovation, ensure long-term sustainability, and maintain a unique position in the market.

Key Benefits of Trade Secrets

- **Competitive Advantage:** Trade secrets provide a unique edge over competitors by protecting proprietary information and processes. ■
- **Long-Term Protection:** Unlike patents, trade secrets can last indefinitely as long as they remain confidential and maintain economic value, offering a continuous advantage. ■
- **Cost-Effective Protection:** Businesses can protect their information without the costs and formalities associated with filing for patents or other registered forms of intellectual property. ■
- **Protection for Non-Patentable Ideas:** Trade secrets allow companies to protect innovative ideas that may not be suitable for patent protection. ■
- **Encourages Innovation:** By securing the substantial investment in research and development, trade secrets incentivize businesses to create new innovations. ■
- **Flexibility:** Protection is not dependent on government registration but on a company's efforts to maintain secrecy, such as implementing security measures and non-disclosure agreements. ■

How Trade Secrets Function

- **Confidentiality is Key:** The core of trade secret protection is the information's secrecy. If the information becomes public knowledge or is independently developed by a competitor, it loses its protected status. ■
- **Economic Value:** For information to qualify as a trade secret, it must have economic value because it is not generally known and provides a competitive benefit. ■
- **Reasonable Efforts:** Companies must make reasonable efforts to keep the information secret, such as having employees sign non-disclosure agreements. ■

Examples of trade secret

Trade secrets can take various forms depending on the industry. Below are some common examples:

- **Recipes:** The formula for Coca-Cola is a classic example of a trade secret
- **Manufacturing processes:** Unique techniques that reduce costs or improve quality
- **Software algorithms:** Proprietary coding for applications or systems
- **Client databases:** Detailed customer information offering a competitive edge

Tools to Protect Trade Secrets in India

- In India, trade secrets are protected using contractual tools like [Non-Disclosure Agreements \(NDAs\)](#), **restrictive covenants in employment contracts**, and legal action under existing laws, including the [Indian Contract Act](#), [Information Technology Act](#), and the [Indian Penal Code](#).
- While India has proposed a new **Trade Secrets Bill** to provide more specific protection, businesses must implement comprehensive internal measures such as robust data protection and employee training to safeguard their [confidential information](#).

Contractual Measures

Non-Disclosure Agreements (NDAs)

These legally binding contracts require individuals or entities to keep confidential information private, with penalties for disclosure, and are used with employees, partners, and contractors.

Employment Contracts:

Restrictive covenants within employment agreements can prevent former employees from sharing sensitive information, such as customer lists or pricing.

[Post-employment NDAs](#): Specific agreements can be used after an employee leaves to prevent them from divulging sensitive trade secrets to new competitors.

Statutory Protections

Indian Contract Act, 1872

: Provides the framework for NDAs and contractual obligations to maintain confidentiality. ☐

Information Technology (IT) Act, 2000

: Protects digital trade secrets from unauthorized access and theft. ☐

Indian Penal Code (IPC), 1860

: Addresses criminal acts such as criminal breach of trust by employees (Section 408) and cheating (Section 415). ☐

Proposed Legislation

- [Protection of Trade Secrets Bill, 2024](#): This proposed bill aims to provide a comprehensive legal framework for trade secret protection, defining trade secrets and granting rights to holders to pursue legal action for misappropriation.

Best Practices & Internal Tools

Data Protection Measures:

Implement robust cybersecurity and data protection protocols to prevent unauthorized access to digital trade secrets.

Employee Training:

Educate employees on the importance of confidentiality and the procedures for handling sensitive information to minimize the risk of accidental disclosure.

Awareness Programs: Conduct ongoing training and awareness programs to reinforce the importance of trade secret protection within the company.

In India, trade secrets are protected under a combination of legal principles, including:

1.Common Law (Contractual Obligations): Trade secret protection in India relies primarily on contract law. Confidentiality and non-disclosure agreements (NDAs) are key tools for safeguarding sensitive information, imposing legal obligations on employees, contractors, and third parties to maintain confidentiality. Breaching these agreements may lead to civil claims for damages or injunctions.

2. Indian Penal Code (now Bharatiya Nyaya Sanhita): Unauthorized misappropriation or theft of property, including trade secrets, can result in criminal charges. However, these provisions are typically applied to theft cases, rather than broader infringements of business secrets.

3. Indian Contract Act, 1872: The Indian Contract Act establishes a framework for enforcing non-disclosure agreements and confidentiality clauses, enabling businesses to protect trade secrets by imposing contractual restrictions on employees and stakeholders regarding the disclosure of sensitive information.

4. The Information Technology (IT) Act, 2000: While primarily focused on cybercrimes and electronic transactions, the IT Act includes provisions to protect trade secrets, particularly in cases of digital data misappropriation or unauthorized sharing. Section 66E penalizes violations related to the privacy of information, including digitally stored or transmitted trade secrets.

5.The Competition Act, 2002: The Competition Commission of India (CCI) regulates anti-competitive practices, and while it does not directly address trade secrets, it can be relevant in cases where unauthorized use of confidential business information leads to an unfair market advantage.

6. Intellectual Property Laws: Although India's intellectual property laws do not specifically address trade secrets, certain provisions indirectly offer protection. For instance, unfair competition laws under the Trademarks Act, 1999, can be invoked if a competitor unlawfully uses a trade secret for an unfair advantage.

Challenges to Trade Secret Protection in India

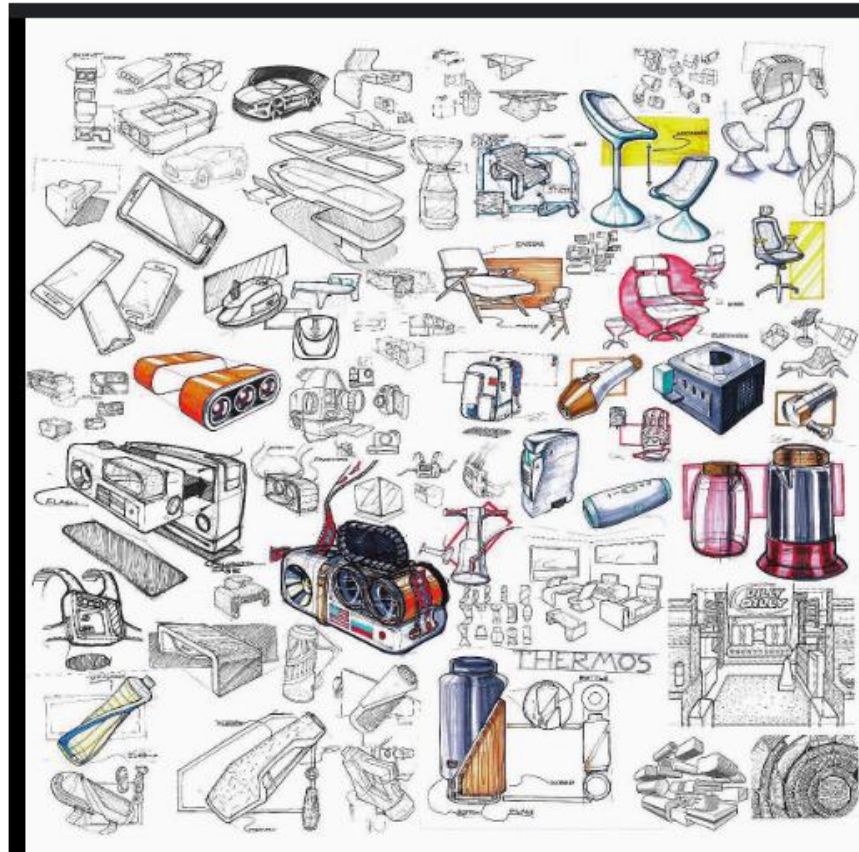
- Absence of a Dedicated Trade Secret Law:** India lacks a specific statute for trade secret protection, unlike jurisdictions such as the United States or the European Union, which have established legal frameworks. As a result, businesses in India rely on a fragmented set of legal tools, creating challenges in navigating trade secret protection effectively.
- Enforcement Issues:** Enforcing trade secret protection is complicated by the absence of clear legal guidelines. There is no dedicated mechanism to define the scope of protection or specify available remedies in case of a breach. Consequently, trade secret cases are often handled under breach of contract or tort law, which may not provide the most suitable or efficient remedies for businesses.
- Evolving Jurisprudence:** Indian courts have yet to establish a comprehensive body of case law on trade secrets. While there have been some rulings on misappropriation, the legal framework remains in development, leaving uncertainty regarding the scope of protection, available remedies, and damages.
- Globalization and Cross-Border Enforcement:** As businesses globalize and share trade secrets across borders, enforcing protection becomes increasingly complex. Different legal systems may have divergent standards for trade secret protection, raising challenges for international enforcement.

Dr. Sudipta Banerjee v/s L.S. Davar & Company & Ors

- In this case, Court issued an injunction order against former employees of a law firm for disclosing trade secrets and confidential information obtained during their employment.
- In this case, the Appellants were restrained from disclosing, divulging, or sharing any such confidential information in any manner until the disposal of the injunction application on its merits.
- The Court further stated that while the Respondent, as a professional body, may not possess trade secrets in the traditional sense, employees of the Respondent would certainly have access to privileged information.
- Sharing such information would not only be unethical but also a violation of the confidentiality clause, potentially causing significant harm to the Respondent's clients and exposing the firm to both civil and criminal liabilities.

Industrial Design

- Industrial design is the process of creating and defining the form and features of mass-produced products to ensure they are both functional and aesthetically pleasing, focusing on usability, manufacturability, and user needs.
- Industrial designers develop ideas for everything from furniture and appliances to vehicles and packaging, working with engineers and marketers to bring concepts from research to reality.



Key Aspects of Industrial Design

Form and Function:

A core principle is balancing a product's appearance with its intended use.

Usability and User Experience:

Designers research how consumers will use a product to create intuitive and enjoyable experiences, addressing user needs and pain points.

Mass Production:

The field is specifically concerned with products designed for manufacturing through mass production.

Collaboration:

Industrial designers work with other professionals like engineers, marketers, and other visual artists to develop successful products.

What Industrial Designers Do

Product Development:

They conceptualize and design products that are both practical and attractive.

Market Research:

They analyze consumer habits and needs to inform their design choices.

Prototyping:

They often develop prototypes to test designs for comfort, ergonomics, and functionality.

Innovation:

Industrial design drives innovation by developing new products, systems, and services that improve people's lives.

Examples of Products Developed Through Industrial Design

- Automobiles
- Household appliances
- Furniture
- Packaging
- Electronic devices
- Textiles and fashion

Features of Industrial

- Industrial design encompasses features like **aesthetics** (shape, pattern, color, texture) and **functionality** (ergonomics, user interaction, manufacturability), all applied to mass-produced articles.
- Key features also include **originality**, **newness**, and that the design is **appealing to the eye** and relates to the **visual appearance** of a product, not its technical function. Industrial design is used to create a wide range of products, from vehicles and appliances to furniture and textiles, aiming to provide value to the user, manufacturer, and environment.

Key Features

Aesthetics

: The visual appeal of an object, including its lines, patterns, colors, and textures, which makes it attractive to consumers. ■

Functionality

: Industrial designers consider how users will interact with a product, ensuring it solves problems and is practical for daily use. ■

Originality and Newness

: A design must be new and original to be protected as an industrial design. ■

Application to an Article

: The design is applied to a product or a product's components. ■

Mass Production

: Industrial design typically involves designs for products that are manufactured industrially. ■

Focus on Visual Appearance

: Industrial design protects the ornamental or aesthetic aspects of a product, rather than its technical or functional features. ■

Ergonomics

: The design considers how people interact with the product, ensuring it is comfortable and efficient to use. ■

Sustainability

: Modern industrial design also incorporates sustainability, aiming to create products that benefit users, manufacturers, and the environment. ■

What Industrial Design Can Include

Two-dimensional (2D) Features

: Such as patterns on textiles or wallpaper.

Three-dimensional (3D) Features

: Including the shape of a product, like a bottle or a chair.

Examples of Products with Industrial Designs

- Furniture and home appliances
- Vehicles and architectural structures
- Jewelry and toys
- Textile prints and wallpaper designs
- Medical devices and graphical user interfaces

Features of Industrial Design

- The user is at the heart of industrial design. Products must be intuitive, accessible, and comfortable, enhancing the user's interaction and overall experience.
- Successful industrial design seamlessly combines form and function, ensuring that products are not only visually appealing but also serve their intended purpose effectively.
- Embracing eco-friendly materials and sustainable production processes is essential. Innovative designs contribute to a greener future without compromising on quality or performance.
- Industrial design must evolve with technological advancements. Integrating new technologies in a user-centric manner is key to creating relevant and forward-thinking products.
- Adhering to industry standards and regulations is non-negotiable. Compliance ensures safety, quality, and market acceptance, paving the way for innovation within set boundaries.

Aspect 1: Understanding User Experience and Ergonomics

- At the crux of industrial design, lies a profound understanding of user experience and ergonomics.
- It's a craft that goes beyond mere aesthetics, ensuring that each product, like a smartphone, is not just pleasing to the eye but also a natural fit in the user's hand.
- It's about designing for comfort, for intuitive interaction, and for seamless daily integration.
- This philosophy demands a meticulous study of how products are held, used, and interacted with, leading to designs that are as functional as they are beautiful.
- This ergonomic focus is what turns a product from a simple tool into an indispensable part of our everyday lives.

Aspect 2: Aesthetic and Functional Design Integration

- In the meticulous world of industrial design, the true elegance of a product lies in how seamlessly it integrates aesthetics with functionality.
- It's not enough for a product to merely solve a practical problem; it should also resonate on an emotional level, fostering a sense of connection with its user.
- This is achieved through thoughtful design, where the beauty of the product serves as a testament to its functionality.
- Take for example, a line of vacuum cleaners, where each curve and contour isn't just for visual effect—it's a feature enhancing the product's efficiency and user-friendliness.
- The transparent bins aren't merely a style choice; they provide a window into the device's inner workings, offering an honest and visually engaging user experience.
- This is design that speaks not only of what the product does but also of how it relates to the user and the environment it inhabits.

Aspect 3: Sustainability and Material Innovation

- Sustainability isn't just a buzzword in the industrial design landscape of Cambridge; it's a driving force for material innovation.
- Designers are actively answering the call for eco-friendly solutions by embracing alternatives to traditional materials.
- Take, for instance, the development of biodegradable packaging solutions that challenge the reliance on plastics.
- These advancements represent a shift in design philosophy, incorporating sustainability at the core of product development.
- It's a commitment to designing products that not only serve the present but also safeguard the future, ensuring that our design choices today don't compromise tomorrow's world.

Aspect 4: Technological Adaptation and Integration

- Industrial design is perpetually evolving, where the challenge lies in merging cutting-edge technology with daily human experiences.
- Designers here are pioneering in integrating tech in ways that feel natural and intuitive. It's about making advanced technology accessible, wearable, and an unobtrusive part of everyday life.
- The key to success lies in products that marry innovation with ease of use, ensuring that each technological advancement enhances the user's interaction with the product.
- It's a synergy where design doesn't just keep pace with technology—it helps to shape its trajectory.

Aspect 5: Compliance with Standards and Regulations

- Navigating the complex web of standards and regulations is critical in industrial design, especially in Cambridge's high-tech corridors.
- Consider the Raspberry Pi's journey—a compact computer designed to educate.
- Its global impact is partly due to its strict adherence to international compliance standards, showcasing that innovative design can and should go hand-in-hand with regulatory wisdom.
- This dance with regulations isn't just about meeting benchmarks; it's about exceeding them, proving that within the framework of compliance, there's ample room for creative brilliance and widespread influence.

Industrial Design Protection

- Industrial design protection grants a legal monopoly for the unique ornamental or aesthetic aspects of an article, preventing others from making, selling, or importing the design for commercial purposes without permission.
- To secure protection, designs must be new and original, and the process typically involves filing an application with the relevant national or regional intellectual property (IP) office, followed by examination and registration.
- Benefits of protection include legal recourse against infringement, fostering innovation, and building a strong brand identity

What is Protected?

- **The "Eye Appeal":** Industrial design protection covers the visual features of a product, such as its shape, configuration, surface pattern, ornamentation, and composition of lines or colors. 
- **Applicable to Articles:** These features are applied to an article through an industrial process. 
- **Not Functional:** It protects the design's appearance, not its functional aspects, which would be covered by a patent. 

Key Requirements for Protection

- **New and Original:** The design must be new and original to be eligible for registration. 
- **Individual Character:** It must possess individual character to distinguish it from existing designs. 

The Protection Process (General Steps)

1. **Application:** File a completed application form with the appropriate national or regional IP office. 
2. **Reproductions:** Include representations of the design with the application. 
3. **Examination:** The IP office will examine the application for compliance with administrative requirements and, in some cases, for substance. 
4. **Registration:** If the design meets the criteria, it will be registered. 

Benefits of Registration

- **Exclusive Rights:** You gain the exclusive right to prevent third parties from using your protected design commercially. ■
- **Legal Recourse:** You can take legal action against infringers who copy or substantially copy your design. ■
- **Brand Building:** It helps establish the visual appearance of your products as a recognizable and authentic brand identity. ■
- **Commercial Advantage:** Protection helps secure the return on investment made in developing unique and attractive products. ■

International Protection

- **Paris Convention:** As a signatory, India is a member of the Paris Convention, which provides for the right of priority for creators seeking protection in multiple countries. ■
- **Hague System:** The [World Intellectual Property Organization \(WIPO\)](#) offers the Hague System, allowing you to file a single application to protect designs in multiple countries. ■

Revocation of Industrial Design Protection

- Revocation of industrial design protection, also known as cancellation, occurs when a registered design is declared invalid by filing a petition with the relevant authority, typically the Controller General of Patents, Designs and Trademarks (CPTDM) in India.
- Grounds for revocation include lack of novelty, prior publication, the design not being new or original, the design not qualifying as registrable subject matter, or being previously registered.
- The process involves filing a petition, serving the registered proprietor, a period for the proprietor to file a counter-statement, and a hearing where the Controller makes a reasoned order to maintain or cancel the design.

Grounds for Revocation

A petition for cancellation of a registered industrial design can be filed on several grounds, including: 

Lack of Novelty/Originality:

The design was not new or original at the time of registration.

Prior Publication:

The design had been published in India or any other country before the registration date.

Prior Registration:

The design was already registered in India.

Not Registrable Subject Matter:

The design does not qualify as a "design" as defined under the relevant act, or it is otherwise not eligible for protection. 

Public Domain:

The design was already in the public domain.

The Cancellation Process

1. **File a Petition:** Any interested person (or the registered proprietor themselves) files a petition for cancellation in Form 8 with the Controller.
2. **Notify the Proprietor:** A copy of the petition and supporting evidence is sent to the registered design proprietor.
3. **Proprietor's Counter-Statement:** The registered proprietor has a period to file a counter-statement and evidence to oppose the petition.
4. **Petitioner's Reply:** The petitioner can then file a reply statement and evidence within a specific timeframe.
5. **Hearing:** A hearing is scheduled by the Controller, during which arguments and evidence from both parties are presented.
6. **Controller's Decision:** The Controller renders a reasoned order, deciding to either cancel the design registration or maintain it.
7. **Publication:** The final decision is published in the Official Journal of the Design Office.

Infringement and Remedies for Industrial Design

What Constitutes Infringement ?.

Design infringement, or piracy of a design, occurs when a third party unauthorized uses, copies, or duplicates a registered design without permission.

Types of Remedies

The Design Act, 2000, provides two main avenues for remedies: ☐

1. Civil Remedy:

- **Suit for Damages and Injunctions:** The registered owner can file a civil suit in a court not below the District Court.
- **Damages:** The court may award compensation to the proprietor for the losses suffered due to the fraudulent acts of the infringer.
- **Injunction:** The court can issue an injunction (an order) to prevent the infringing party from continuing the unauthorized use of the design.
- **Account of Profits:** The court can order the infringer to hand over any profits gained from the unauthorized use of the design, according to one source.

2. Statutory Penalty:

- **Recovery of Sum:** As an alternative to a civil suit for damages, the owner can elect to recover a fixed sum for every contravention.
- **Amount:** The sum is not exceeding ₹25,000 for every breach.
- **Total Limit:** The total amount recoverable for one design is capped at ₹50,000. ☐

The owner of a registered design right may exclusively work the registered design or any design similar to it. If a third party manufactures or sells, etc., the registered design or any similar design for commercial purposes (meaning that private or domestic use is excluded) and if the third party is not licensed to do so by the owner of the registered design right, such activity constitutes a design right infringement.

In making an actual judgment regarding similarity, it is common for two designs to be deemed similar after comparing the two designs and identifying resemblance:

1. the overall dominant constitution and the specific constitution of both designs;
2. the feature (characteristic creation, the outstanding part when the article is being used, etc.) of the designs;
3. a common dominant constitution in both designs;
4. Only a slightly different dominant constitution in both designs or the difference is not notable (i.e., the difference is a well-known constitution).

Important Considerations

Registration is Key:

To be able to avail of these remedies, the design must be registered under the Designs Act, 2000. ☐

Timeliness:

A suit or proceeding for design infringement cannot be initiated if the piracy occurred after the design ceased to have effect and before its restoration. ☐

Court Jurisdiction:

Civil suits for design infringement must be filed in a court not below the rank of a District Court. ☐

Design Infringement – Case Studies

- In the case of **Troika Pharmaceuticals v. Pro Laboratories**, the Gujarat High Court ruled in favour of the plaintiff because they were the registered owners of ‘D’ shaped tablets, which was a protected design.
The defendants began manufacturing identical tablets on the grounds that the design was common and did not merit protection. Even if the “D”-shaped design was not innovative, the Court found that its use in tablets was novel and hence entitled to protection under the Designs Act.
- The court ruled in **Kemp & Co. v. Prima Plastics Limited** that “If the visual characteristics of shape, configuration, and pattern designs are comparable or stringently similar to the eye, it is not required that the two designs be identical. The issue must be viewed as one of substance, and fundamental design elements must be evaluated.”

Copy Right

- Copyright is a legal protection for original literary, artistic, musical, and other creative works, granting creators exclusive rights over their creations for a limited time.
- These exclusive rights include reproducing, distributing, adapting, and publicly performing the work, allowing creators to control its use and benefit financially.
- Copyright protects the expression of an idea, not the idea itself, and serves to encourage creativity and the sharing of knowledge by ensuring creators are rewarded for their efforts.

What Copyright Protects ?

Copyright applies to original works of authors, such as:

- **Literary works:** Books, articles, computer programs, and databases
- **Artistic works:** Paintings, sculptures, and photographs
- **Musical works:** Compositions and sound recordings
- **Dramatic works:** Plays and other performances
- **Cinematographic films**

Exclusive Rights Granted Copyright holders have a bundle of exclusive rights over their work, including the right to:

- **Reproduce:** the work (make copies)
- **Distribute:** the work to the public
- **Adapt:** the work (e.g., create a translation or a new version)
- **Communicate:** the work to the public (e.g., perform it)

Key Principles

- **Originality:** Copyright protects original works of authorship. ■
- **Expression, not ideas:** Copyright safeguards the way an idea is expressed, not the idea itself. ■
- **Economic & Moral Rights:** In addition to controlling the economic use of their work, copyright law often includes moral rights, which protect the author's reputation and their connection to the work. ■
- **Purpose:** The goal of copyright law is to protect creators' work, allow them to profit from their creations, and encourage the creation of new cultural works. 

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BASIC PRINCIPLES OF COPYRIGHT LAW

The Copyright law is built on a set of fundamental principles that continue to guide its development and implementation.

1.Originality: In the realm of Copyright Law, one of the key requirements for a work to be eligible for copyright protection is originality. This means that the work must be the result of the author's creative effort and not a mere copy of existing materials.

2.Fixed Form: Copyright law also mandates that the work must be fixed in a tangible medium to be eligible for protection. This can include writing, recording, or saving in digital format. Ideas themselves are not protected; it's the expression of those ideas that is safeguarded.

3. Exclusive Rights: Copyright Law grants creators or copyright holders a set of exclusive rights, including the right to reproduce, distribute, perform, and assign their work. These rights enable creators to control how their creations are used, except for cases like fair use or other legally allowed exceptions.

4. Limited Duration: Copyright protection has a limited duration, granting the copyright holder exclusive rights for a specific period, which varies by location. Typically, it extends for the author's lifetime plus an additional 50 to 70 years. In India, these rights endure for the author's lifetime and an additional 60 years after their death. After this timeframe, the work becomes accessible to the public, available for use by everyone.

5. Fair Use: Copyright law also includes the concept of fair use, permitting restricted use of copyrighted material without explicit permission. This allowance applies to purposes such as criticism, commentary, news reporting, teaching, and research. Fair use is a nuanced and context-dependent concept, involving considerations like the purpose and nature of the use, the copyrighted work's characteristics, the amount used, and its impact on the market.

WORKS IN WHICH COPYRIGHT SUBSISTS

There are certain types of works upon which the right of copyright is granted. Following are the works which can be copyrighted:

1. Artistic Work: This category includes visual creations like paintings, drawings, sculptures, engravings, photographs, and graphic designs. It also includes work of architecture. Copyright protects the original expression and arrangement of these visual works.

In the case, Associated Publishers Madras Ltd v. K. Bashyam Alias 'Arya', Madras High Court held that "artistic work" under section 2(c) includes paintings, sculptures, drawings, engravings, and photographs and works of architecture etc.

2. Cinematographic Film: A cinematographic film means any visual recording created through a process that captures a moving image alongside the visual content. The term "cinematographic" is understood to encompass any work produced through processes similar to cinematography, including video films.

In the case, Raj Video Vision v. K. Mohana Krishnan,[\[3\]](#) the Madras High Court determined that both video and television fall under the definition of 'cinematograph' as defined in Section 2(f) of the Copyright Act, 1957.

3. Dramatic Work: It is defined under section 2(h) of the Copyright Act, 1957. Dramatic Work is defined as any form of recitation, choreographic performance, or entertainment conveyed through actions, with the arrangement or performance being documented in writing or other forms. However, it does not include a cinematographic film.

4. Literary Work: It is defined under section 2(o) of the Copyright Act, 1957. Literary works includes computer programmes, tables and compilation including computer database.

In the case, *Fateh Singh Mehta v. O.P. Singhal*[\[6\]](#), The Rajasthan High Court held that the literary work includes “dissertation” submitted by a student.

5. Musical Work: It is defined under section 2(p) of the Copyright Act, 1957. Musical work composition of primarily composed of music and may include graphical notations but excludes any verbal or performative elements intended to accompany the music.

In the case, *Indian Performing Rights Society v. Eastern India Motion Picture Association*[\[7\]](#), the Supreme Court determined that “musical work” as defined in section 2(p) encompasses any arrangement of melody and harmony, whether in written form or graphically represented.

6. Sound Recording: It is defined under section 2(xx) of the Copyright Act, 1957. Sound recording means the recording of sounds from which such sounds may be produced regardless of the medium on which such recording is made or the method by which the sounds are produced.

OWNERSHIP OF COPYRIGHT

- The Copyright Law also establishes that the author of the work is the first copyright owner of the work.
- While the author is generally the first owner of copyright, The Copyright Act outlines circumstances where someone other than the author may be the first owner, creating two distinct categories of first owners.
1.Author as the first owner : Unless otherwise provided in the law, author is the first owner of the copyright of a work.

Author means:

- i. In the case of literary or dramatic work, the author,
- ii. In the case of creative work apart from photography, the artist,
- iii. In the case of photographic work, the person taking the photograph,
- iv. In the case of cinematographic or recording work, the producer,
- v. In case of any work generated by any computer virus, the person who created.

2. Any other person as the first owner other than the author:

- i. When an author creates content while employed by the owner of a newspaper, magazine, or periodical, the proprietor of that publication,
- ii. When a photograph is taken, a painting or portrait is created, or a cinematograph is produced for a fee, the person who pays for it
- iii. If a work is produced during an author's employment under a service contract, the employer,
- iv. When an address or speech is delivered publicly on behalf of someone else, that person,
- v. For government works, the government,
- vi. For works carried out under the direction and control of a public entity, that public undertaking,
- vii. For works of the relevant international organizations.

RIGHTS OF COPYRIGHT HOLDER

Copyright holders have several rights, including:

1.Reproduction Right: This is the fundamental right that allows the copyright holder to make copies of their work. It includes creating physical copies, such as books or DVDs, and digital copies, like e-books or digital downloads.

2. Distribution Right: This right allows the copyright holder to control the distribution of their work to the public. It involves decisions about how and where copies of the work are made available, such as selling books in bookstores or distributing music through streaming platforms.

3. Public Performance Right: This right pertains to public presentations or performances of the work. For example, musicians have the exclusive right to perform their songs in public concerts, and theaters must obtain permission to stage plays or movies.

4. Public Display Right: This right relates to the visual representation of a copyrighted work. It is often relevant in the context of visual arts, where artists have control over how their paintings, sculptures, or photographs are displayed in public exhibitions or galleries.

5. Derivative Work Right: Copyright holders can decide whether others can create derivative works based on their original work. Derivative works include adaptations, translations, parodies, remixes, or any new creations built upon the original material.

6. Moral Rights: Moral rights are more prevalent in certain countries and provide authors with the right to be attributed as the author of their work, to object to derogatory treatment of their work (such as distortion or mutilation), and sometimes the right to control the disclosure of their work. These rights protect the integrity and reputation of the creator.

TERM OF COPYRIGHT

The Copyright Law also outlines the duration of copyright protection for various types of works as follows:

1. Copyright for literary, dramatic, artistic, and musical works lasts:

- Throughout the author's lifetime, and
- For sixty years from the start of the calendar year following the author's death.

2. Copyright extends for sixty years from the beginning of the calendar year following publication for the following types of works:

- Posthumous works
- Cinematograph films
- Sound recordings
- Government works
- Works of public undertakings
- Works of International Organizations

ASSIGNMENT OF COPYRIGHT

- The Copyright Law allows the owner of a work's copyright to transfer some or all of those rights to another person.
- This can also apply to future works, but for such assignments, they only become effective once the future work is created.
- In this context, the person assigning the copyright is called the “assignor,” and the recipient is the “assignee.”
- The act also specifies that if the assignee passes away before the future work is created, their legal representatives inherit the rights.
- The assignee, to whom the copyright is transferred, is recognized as the owner of those specific rights under the Copyright Act of 1957.

MODE OF ASSIGNMENT

According to Copyright Law, following conditions are necessary for a valid assignment:

1. The assignment must be documented in writing.
2. It should bear the signature of the assignor or their duly authorized representative.
3. The assignment must clearly outline the work being transferred.
4. It should also specify the exact rights being transferred through the assignment.
5. The assignment should define its duration and geographic scope as follows:
 - i. In cases where the period isn't specified, it's assumed to be five years from the date of assignment.
 - ii. If the territorial extent isn't specified, it's presumed to cover India.
6. The assignment should detail any royalties payable to the author or their legal heirs during the assignment's validity.
7. The assignment can be revised, extended, or terminated according to mutually agreed-upon terms between the parties involved

Copy Right Protection

- Copyright protection is a legal right that protects original creative works, like books, music, or software, by giving the author exclusive rights to control how their work is reproduced, distributed, and performed.
- This protection is automatic in most countries once the work is created and fixed in a tangible form, though it doesn't cover mere ideas or facts but rather the specific way these are expressed.
- Copyright owners can register their work to gain access to federal courts and other benefits, though this isn't always a prerequisite for protection.

What Copyright Protects ?

Copyright protects original works of authorship, including:

- **Literary works:** Books, poems, articles, scripts.
- **Artistic works:** Paintings, photographs, sculptures, graphic designs.
- **Musical works:** Compositions and lyrics.
- **Audiovisual works:** Films, television shows, video games.
- **Computer software:** Programs and code.
- **Architectural works:** Designs and plans.

What Copyright Does NOT Protect

- **Facts:** The underlying information or news.
- **Ideas and concepts:** The general thought behind a work.
- **Titles, names, and slogans:** Short phrases or unique identifiers.
- **Methods of operation or systems:** How something functions.

Key Characteristics of Copyright

- **Originality:** The work must be independently created by the author and possess a minimal degree of creativity.
- **Fixation:** The work must be expressed in a tangible form, such as a written document, a recording, or a digital file.
- **Automatic:** In many countries, copyright protection is granted automatically without requiring registration.
- **Territorial Rights:** Copyright granted by a specific country does not extend beyond its borders. 

How to Obtain and Benefit from Copyright Protection

- **Creation and Fixation:** Protection begins automatically when an original work is created and fixed in a tangible form.
- **Copyright Registration:** While not always necessary for protection, registering a work with a national copyright office (like the U.S. Copyright Office) provides legal benefits, including access to federal courts for infringement cases.
- **Exclusive Rights:** Copyright grants rights to the owner, including the ability to reproduce, distribute, perform, and display the work, as well as create derivative works. 

Transfer of Copy Rights

- A transfer of copyright means the owner grants their exclusive rights to a copyrighted work to another party through an assignment (a complete transfer of ownership) or a license (granting specific rights for a limited time or purpose).
- Both assignment and exclusive license transfers generally require a signed, written agreement, while non-exclusive licenses do not.
- Other transfer methods include mortgages, bequests in a will, and automatic passing via [intestate succession](#) (inheritance without a will).

Key Methods of Transfer

- **Assignment:** A full and permanent transfer of all copyright ownership rights to another party. [REDACTED]
- **License:** A grant of specific, exclusive or non-exclusive rights for the use of a copyrighted work, without transferring the entire ownership. [REDACTED]
- **Bequest by Will:** Transferring copyright to beneficiaries after the owner's death as part of their estate. [REDACTED]
- **Intestate Succession:** When a copyright passes to legal heirs according to state law, as if it were any other personal property, if the deceased did not have a will. [REDACTED]
- **Mortgage:** A copyright owner can mortgage their copyright, and transfer can occur under foreclosure, according to ScienceDirect. [REDACTED]
- **Operation of Law:** In certain situations, copyright ownership can be automatically transferred by legal provisions, such as the transfer of rights upon a company's bankruptcy or merger. [REDACTED]

Requirements for Transfer

- **Written Agreement:** For assignments and exclusive licenses, a written document signed by the copyright owner or their authorized agent is generally required. 
- **Consideration:** The agreement must include adequate consideration, meaning something of value must be exchanged between the parties to make it valid. 
- **Recording with Copyright Office:** While not mandatory for validity, recording a copyright transfer with the U.S. Copyright Office provides constructive public notice of the transfer, [according to the Copyright Office \(.gov\)](#). 

Important Considerations

- **Partial vs. Full Transfer:** A copyright can be transferred entirely or only certain rights can be split and transferred. 
- **Termination Rights:** In the U.S., authors can terminate previous transfers of their copyrights under specific conditions, typically within a five-year window starting 35 years after the transfer was made, [notes the Copyright Alliance](#). 
- **Works Made for Hire:** For works created by employees within the scope of their employment, the employer is the default owner and no transfer agreement is necessary. 

Ways to Commence Copyright Transfer

- Copyright transfer is commenced through a signed, written contract, such as an [assignment agreement](#) or a [licensing agreement](#), detailing the specific rights being transferred, the work in question, the duration, and the consideration (payment).
- Other methods include [testamentary disposition](#) through a will, [inheritance](#) by [intestate succession](#), and transfer by **operation of law**, such as in bankruptcy proceedings.

Methods for Transferring Copyright

- **Assignment**: A sale of all or part of the copyright to another party.
- **Licensing**: Granting permission to use the copyright, often for specific uses, without transferring full ownership.
- **Testamentary Disposition**: Transferring a copyright to a beneficiary through a valid will.
- **Inheritance/ Intestate Succession**: When the copyright owner dies without a will, the copyright passes to heirs according to the laws of the state or country.
- **Operation of Law**: A transfer that happens due to legal processes, such as in a bankruptcy proceeding. 

Key Elements of a Transfer Agreement

A written copyright transfer agreement is the most formal way to commence a transfer.

The agreement must include:

- **Identification of Parties:** The names of the copyright owner (assignor) and the recipient (assignee).
- **Identification of the Work:** A clear description of the copyrighted work being transferred.
- **Scope of Rights:** Specification of which rights are being transferred (e.g., reproduction, distribution) and their extent.
- **Duration:** The length of time for which the rights are being transferred.
- **Consideration:** An exchange of something of value, such as a monetary payment, to make the contract valid.
- **Effective Date:** The date the transfer becomes effective.

Important Considerations

- **Written Agreement:** For any transfer, except by operation of law, the agreement must be in writing and signed by the copyright owner or their authorized agent.
- **Consideration:** A valid exchange of something of value, even a nominal amount like \$1, is necessary for a transfer agreement.
- **Recording the Transfer:** In the United States, recording the transfer document with the [U.S. Copyright Office](#) can create a public record of the ownership change.

Right of Broad Casting Organizations and Performer's Rights

- Broadcasting organizations have a "broadcast reproduction right" allowing them to control the re-broadcasting, public viewing/hearing, recording, and reproduction of their broadcasts, while performers have exclusive rights to control the recording, broadcast, reproduction, and public communication of their performances, including economic and moral rights.
- These neighboring rights do not protect the original work itself but rather the specific broadcast or performance.

Broadcasting Organizations' Rights

- **Broadcast Reproduction Right:** This grants broadcasters exclusive control over their broadcasts.
- **Re-broadcasting:** Organizations can prevent others from re-broadcasting their signals.
- **Public Communication:** Broadcasters can control the public's access to their broadcasts, for instance, by preventing them from being heard or seen by paying an audience without their consent.
- **Recording and Reproduction:** They have the right to control the making and reproduction of sound or visual recordings of their broadcasts.
- **Duration:** This right generally lasts for a specified period, such as 25 years in India from the year following the broadcast.

Performers' Rights

- **Economic Rights:**
 - **Recording:** Performers can control the making of sound or visual recordings of their performances.
 - **Broadcasting:** They can prevent their live performances from being broadcast without consent.
 - **Reproduction:** Performers have the right to prevent the reproduction of recordings of their performances.
 - **Commercial Exploitation:** They can prevent the commercial use of their performance without their authorization.
- **Moral Rights:** These rights protect their reputation and ensure proper attribution for their performances.
- **Duration:** In some jurisdictions, such as India, these rights are protected for a period like 50 years from the year following the performance.

How They Interrelate

- These rights are considered "neighboring rights" because they are related to, but distinct from, the original copyright in a work.
- Performers' rights extend to the control of their performances, which are often then captured and broadcast by broadcasting organizations.
- Both sets of rights are crucial for the economic viability and integrity of the broadcasting and entertainment industries.

Some Important Case Laws

One of the earliest cases where the performers rights came into question and where it was completely denied by the court to recognize the performer's right in the cinematograph film was in Fortune Films International v. Dev Anand, here the court held that an actor has no right to control the use of their performance in the film. The actors were given a fee for their performance and after that the producer was free to use their performance in whatever they wish to use it. But with the amendment in the Copyright Act in 1994, performer's rights were given recognition.

In Super Cassettes Industries v. Bathla Cassette Industries, the Delhi High Court held that copyright and performers rights are two different things and in case the song is re-recorded then the prior permission of the original singer is required.

In Neha Bhasin v. Anand Raj Anand, the court addressed the issue that what will constitute the live performance, here it held that whether the performance is recorded in the studio or in front of the audience, for the first instance, both will be called live performance and if anyone use such performance without the consent of the performer then performer's rights is said to be infringed.

Exceptions of Copy Right

- Copyright exceptions allow for specific uses of copyrighted material without permission from the rights holder, acting as limitations on copyright monopolies.
- Key examples include fair use, which allows for limited use for criticism, news reporting, teaching, scholarship, and research; library exceptions for preservation and access, such as for visually impaired people; and exceptions for private use or for preservation and replacement copies.
- The specific exceptions and how they are applied vary by country and are determined on a case-by-case basis, considering factors like the purpose of the use and the potential market impact.

Common Types of Copyright Exceptions

- **Fair Use (United States) / Fair Dealing (Other Countries):** This is the most well-known exception, allowing limited use of copyrighted material for purposes such as:
 - **Criticism and comment:** Using copyrighted content to discuss or review a work.
 - **News reporting:** Incorporating parts of a copyrighted work to report on current events.
 - **Teaching, scholarship, and research:** Using materials for educational or academic purposes.
 - **Parody:** Creating a new work that imitates or comments on an original work for comedic effect.

- **Library and Archive Exceptions:** These exceptions often permit libraries and archives to:
 - Make preservation copies of works.
 - Create copies for patrons, especially for individuals with perceptual or visual disabilities.
- **First Sale Doctrine:** This allows a person who lawfully possesses a physical copy of a copyrighted work (like a book) to sell, rent, or donate that specific copy without the copyright owner's permission.
- **Private Use:** Limited use of copyrighted works for personal research or private study without infringing copyright.

How Exceptions are Determined

Whether a particular use qualifies for an exception is not always clear-cut and is often determined on a case-by-case basis. Factors considered typically include:

1. **Purpose and character of the use:** Is it for nonprofit educational purposes or commercial gain?
2. **Nature of the copyrighted work:** Factual works receive more protection than creative ones.
3. **Amount and substantiality of the portion used:** Using a larger or more significant part of the original work may be less likely to qualify as fair.
4. **Effect on the market for the original work:** The use should not negatively impact the potential market value of the copyrighted work.

Key Considerations

- **Vary by Jurisdiction:** The specific exceptions available and their scope vary significantly from country to country, as reflected in national copyright laws and international treaties like the Berne Convention. 
- **Balance of Rights:** These exceptions are intended to balance the rights of copyright owners with the public interest in accessing and using copyrighted works for education, criticism, and other creative endeavors. 
- **Complex and Evolving:** The application of these exceptions can be complex and is subject to ongoing interpretation and debate, especially in the context of digital media. 

Infringement of Copy Right with case studies.

- Copyright infringement is the unauthorized use of a work that is protected by copyright, such as books, music, films, or software, without the permission of the copyright holder.
- It violates the exclusive rights granted to the owner, including the right to reproduce, distribute, perform, display, or create derivative works from their creation. Infringement can lead to severe penalties, including monetary damages, legal costs, injunctions, and, in some cases, criminal penalties.

Infringement occurs when someone:

Reproduces

a copyrighted work without permission.

Distributes

copies of the work without authorization.

Publicly performs

or **displays** the work without consent.

Creates **derivative works** (adaptations or new versions) based on the original work without permission.

Imports

infringing copies.

How to Avoid Infringement

Seek permission:

Always ask for permission from the copyright holder before using their work.

Use licenses:

Obtain the necessary licenses to legally use copyrighted material. 

Create your own work:

Develop original content to avoid using someone else's copyrighted material.

Legal Consequences

If you are found to have infringed on a copyright, you could face:

Civil lawsuits:

The copyright owner can sue for damages. 

Monetary damages:

You may be ordered to pay damages, including the profits made from the infringing use, and the plaintiff's legal fees. 

Injunctions:

A court order to stop the infringing activity. 

Criminal penalties:

In some cases, willful and commercial-scale infringement can result in fines and even imprisonment. 

Remedies For Copyright Infringement

Under the Copyright Act, 1957 the copyright holder has two types of remedies: **Civil Remedies**

The different civil remedies available are:

1) Interlocutory Injunctions

Copyright Infringement Cases

YRF vs Sri Sai Ganesh Productions

- In this case, YRF filed a copyright infringement suit against Sri Sai Ganesh Productions on the grounds that it copied their movie 'Band Baaja Baaraat' and produced 'Jabardasht' movie which had substantial and material similarities in terms of concept, theme, character, plot, story, script and expression amongst other things.
- The court extended the test of originality since the films are protected like original works, to distinguish between the two films based on 'foundation, substance and kernel' and understand the average moviegoer's viewpoint as to whether they would have an impression that one work was a copy of the other.
- The court held that Sri Sai Ganesh Productions had blatantly copied the YRF film's essential, fundamental and distinctive features, resulting in copyright infringement.

Hawkins Cooker Ltd. vs Magicook Appliances

- Hawkins Cooker Ltd sued Magicook Appliances on the grounds of illicitly using their label registered under the Copyright Act, 1957, which they used on their renowned pressure cooker line.
- The court deterred Magicook Appliances from using the Hawkins Cooker Ltd cookbooks.
- It ordered Magicook Appliances to deliver damages to Hawkins Cooker Ltd company for all alleged books, products, and articles employed by them in manufacturing the offending goods.

Super Cassettes Industries Limited vs YouTube and Google

- Super Cassettes Industries Limited (SCIL) claimed that the YouTube business model makes a substantial profit from using the copyrighted work uploaded without approval from the copyright owners and without paying a royalty for the same.
- The court opined that YouTube, the video streaming giant and Google should stop distributing, reproducing, displaying or transmitting on their portal any audio-visual works in the exclusive ownership of the SCIL.